

Court No. - 38

Case :- WRIT - C No. - 8392 of 2019

Petitioner :- Ankit Gupta

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Rajesh Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Abhinava Upadhya,J.

Hon'ble Jayant Banerji,J.

Sri Pranjal Mehrotra, learned counsel appearing for the respondents may seek instructions.

Put up as fresh on 15.3.2019.

Order Date :- 12.3.2019

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(Jayant Banerji, J) (Abhinava Upadhya,J)

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Hon'ble Abhinava Upadhya,J.

Hon'ble Jayant Banerji,J.

This writ petition has been filed against an order of compounding on account of theft of electricity. The said compounding has been done pursuant to an order dated 30.4.2018 passed in Crl. Writ Petition No. 10939 of 2018.

It appears that the final assessment has also been made against the petitioner and against the said final assessment, the petitioner has a remedy of filing of an appeal under Section 127 of the Electricity Supply Code, 2005.

There are efficacious statutory remedy available to the petitioner, we are not inclined to interfere in the matter. It is, however, made clear that in case the petitioner prefers an appeal, the same shall not be thrown out merely on the ground of delay.

Learned counsel for the petitioner submits that the petitioner will file the appeal within one week.

For a period of one week, no coercive action shall be taken against the petitioner pursuant to recovery citation dated 10.12.2018.

With the aforesaid observations, the writ petition stands disposed of.

Order Date :- 15.3.2019

sfa/

(Jayant Banerji, J) (Abhinav Upadhya,J)